CONVERGENCE RESOURCES (PRIVATE) LIMITED
versus
FORTHFIELD INVESTMENTS (PRIVATE) LIMITED

IN THE HIGH COURT OF ZIMBABWE
MANDAZA J
HARARE, 24 November 2025, 19 December 2025 & 19 January 2026

Claim in reconvention.

M D Mucheda for the Applicant.
U Chikwetu for the Respondent.

MANDAZA J: The applicant is Convergence Resources (Private) Limited, a company duly incorporated and operating in accordance with the laws of Zimbabwe. The Respondent is Forthfield Investments (Private) Limited, a company duly incorporated according to the laws of Zimbabwe. The parties appeared before me on 24 November 2025 with an application to strike out the claim in reconvention filed under case number HCH 4190/24. Whereof the applicant sought the following order:

1. The respondent's claim in reconvention, which was filed under case number HCH 4190/24, be and is hereby set aside and therefore struck off the record.
2. The respondent shall pay the costs of suit on a legal practitioner-client scale.

Background

The applicant is a limited liability company whose business involves, among other things, the letting of earth-moving machines and related equipment. Sometime in January 2024, the applicant and the respondent entered into an agreement under which the applicant agreed to let its tipper trucks to the respondent for the respondent's use and enjoyment at an agreed consideration of US$300 (three hundred United States dollars) per each eight-hour shift, per each tipper truck. The respondent was supposed to pay the invoiced amounts upon receipt, but has since refused to do so. Summons were accordingly issued on 25 September 2024.

The respondent entered an appearance to defend. The applicant thereafter filed an application for summary judgement under case number HCH4566/24, which was granted. Whilst the application for summary judgement was pending, the respondent filed its plea and

counterclaim as separate pleadings. Neither was ever served on the applicant. The respondent's failure to serve the relevant pleadings was criticised by the presiding judge in HCH4566/24. The respondent still has not served its plea and claim in reconvention on the applicant.

Points *in limine*

The respondent raised two points *in limine:*

1. The chamber application is fatally defective for non-compliance with Rule 60(1), as read with Rule 59 (6), of the High Court Rules 2021. The applicant gave the *dies induciae* of less than 10 days. The applicant failed to give the respondent the mandatory 10 days' notice, rendering the application a nullity; it must therefore be dismissed with costs on the legal practitioner and client scale. The respondent went on to cite the case of *Air Duct Fabricators Private Limited* v *A. M Machado Private Limited* HH 54/16, where the Court had this to say:

> "When the word 'shall' is used, it denotes mandatory action, and compliance with the prescribed course of action is obligatory, imperative, and strict. Failure to comply with a mandatory course of action invalidates the thing done, whereas failure to comply with a directive is not fatal; it may result in some sanction being imposed."

In response, the applicant submitted that:

> "Rule 59(6) specifically addresses court applications to the exclusion of chamber applications, and the said 60(1) provides that where a chamber application is to be served on an interested party, it shall be in form no. 23 with appropriate modifications. The applicant was therefore at liberty to make any appropriate modifications. In any case, the use of a wrong form is generally not a valid reason for dismissal of a case if the error does not cause prejudice to the other party. The focus is on ensuring justice is done and that cases are decided on their substance rather than technicalities. See *Simalu Mining Private Limited & 4 Ors* v *Zibon Sibanda* & 13 ORS HB 47/20. "

Rule 59(6) cited by the respondent concerns court applications. The said rule is couched as follows:

> "The time within which a respondent in a court application may be required to file a notice of opposition and opposing affidavits shall be not less than ten days, exclusive of the day of service, plus one day for every 200 kilometres or part thereof where the place at which at which the application is served is more than 200 kilometres from the court where the application is heard."

The ten-day period the respondent relies on applies to court applications, not chamber applications. The respondent did not even state the prejudice it suffered due to a shortened

dies induciae. Stating it would have greatly assisted the court. Accordingly, the *point in limine* is dismissed. In coming to that conclusion, I am also aware of Rule 7 of the High Court Rules, 2021, which is couched as follows:

> The court or a judge may, in relation to any particular case before it or him or her, as the case may be-
>
> (a) Direct, authorise or condone a departure from any provision of these rules, including an extension of any period specified therein, where it or he or she, as the case may be, is satisfied that the departure is required in the interest of justice;(My emphasis)

2. The second point in limine raised concerned the citation of the law in the founding affidavit. The respondent submitted that :

> "The applicant has quoted the law in the founding affidavit in paragraphs 15 to 21 as if these are heads of arguments. On that basis, the application is fatally defective."

In response, the applicant responded that:

> "With respect, the *point in limine* raised is a waste of the court's time because the cited provisions constitute the Applicant's cause of action. It is trite that an Applicant seeking justice must cite the relevant provision upon which the application is founded, and an application stands or falls on its founding affidavit. See *Ahmed* v *Docking Station Safaris Private* t/a CC Sales SC 70-2018."

I am of the view that there is no prejudice suffered by the respondent. It is trite that an application stands or falls on the averments made in the founding affidavit. See Herbstein & van Winsen, *The Civil Practice of the Superior Courts in South Africa,* 3rd ed, p. 80, where the authors state:

> "The general rule, however, which has been laid down repeatedly is that an applicant must stand or fall by his founding affidavit and the facts alleged therein, and that although sometimes it is permissible to supplement the allegations contained in that affidavit, still the main foundation of the application is the allegation of facts stated therein, because these are the facts which the respondent is called upon either to affirm or deny. If the applicant merely sets out a skeleton case in his supporting affidavits, any fortifying paragraphs in his replying affidavits will be struck out."

The respondent's objection is misconceived. Citing legal provisions in a founding affidavit does not transform it into heads of argument, nor does it render the application defective. Therefore, the point in limine is dismissed.

Merits

Issues for determination:

1. Whether or not the claim in reconvention was duly served?
2. Whether or not the Respondent's counterclaim is properly before the court?

Legal analysis

Whether or not the claim in reconvention was duly served?

Respondent submitted that

> "There is no dispute that the plea and claim in reconvention were not physically delivered to the applicant; however, in terms of Rule 15(4) of the High Court Rules, 2021 as amended by Statutory Instrument 81 of 2024, the plea and claim in reconvention were properly delivered."

The Applicant responded as follows:

> "Rule 15(4) of Statutory Instrument 81 of 2024 provides that, in addition to the methods of service provided for in the rules, service may also be effected electronically via email, web portal, or any other electronic means which may be designated by the Chief Justice in any Practice Direction. The respondent did not serve the plea and claim in reconvention on the applicant via email or any other electronic means; hence, for all intents and purposes, service has still not been effected.
> The High Court has recently held that the use of the Integrated Electronic Case Management System (IECMS) did not do away with the requirement to serve process on the other party. If it did so, it would result in an absurdity anyway because there would be no requirement for proof of service, thus no default judgments could be granted, no party would be barred, and service could not be proven to have been done. In fact, it would be nearly impossible to observe the *dies induciae* of matters."

To determine whether the claim in reconvention was duly served, we must interpret Rule 15(4) of the High Court Rules, 2021, as amended by Statutory Instrument 81 of 2024, in light of the parties' submissions. The amendment reads as follows:

> "Initial service of summons shall be done physically by the Sheriff, and all other subsequent pleadings, notices of set down, court orders, and any other process whatsoever shall be done electronically through the IECMS platform".

SI 81/2024 introduced electronic service as a valid method, provided it is conducted via email, a web portal, or any other designated electronic means, as per the Practice Direction. The respondent admits that no physical service was effected. The respondent argues that filing on the IECMS platform constitutes valid service under Rule 15(4), as the documents were uploaded electronically. Applicant's rebuttal emphasizes that uploading to IECMS is not equivalent to service. I hold that the plea and claim in reconvention were not properly served because the respondent did not serve the applicant via email or any other electronic means.

2. Whether or not the Respondent's counterclaim is properly before the court?

Applicant's submissions:

> "The respondent did not comply with rule 38(1) in that it filed its claim in reconvention separately from its plea as a separate pleading. In doing so, the respondent did not seek the applicant's consent nor that of the court, and for that reason, the claim in reconvention is dead on arrival.
>
> Rule 38(2) of the High Court Rules, 2021 is clear that the claim in reconvention, "shall be set out either in a separate document or in a portion of the document containing the plea." The import of this rule is that the claim in reconvention may be on the same page as the plea, or on a separate page, not to be filed as a separate pleading altogether."

The Respondent's response:

> "Rule 38(1) of the High Court Rules, 2021, as read with rule 38(2), is that the plea and claim in reconvention may be delivered on the same day, or simultaneously or concurrently as separate documents. The plea and claim reconvention were delivered on the same day, or simultaneously or concurrently as separate documents. The time difference between delivering the plea and claim in reconvention is 3 seconds as recorded on the IECMS platform. I believe the time difference between the delivery of the plea and claim in reconvention on the same day accords with simultaneous or concurrent delivery.
>
> The import of rule 38(2) of the High Court Rules, 2021, is that a counterclaim may be attached to the plea or be set out in an independent document, which necessitated the delivery of the claim in reconvention separately from the plea on the same day or simultaneously or concurrently. More so, I am advised that the interpretation given to this sub-rule by the applicant renders it superfluous."

To determine whether the respondent's counterclaim is properly before the court under Rule 38 of the High Court Rules, 2021, we must interpret both Rule 38(1) and Rule 38(2) in context and assess compliance with them.

Rule 38(1) provides as follows:

> "A defendant who counterclaims shall, ***together with*** his or her plea, deliver a claim in reconvention setting out the material facts thereof in accordance with rules 13 and 36……"

Based on this provision, it is clear that a defendant who wishes to file a counterclaim must do so *together with* their plea, unless they obtain the applicant's consent or the court's permission to file it later.

Rule 38(2) States as follows:

> "The claim in reconvention shall be set out either in a separate document or in a portion of the document containing the plea, but headed 'Claim in Reconvention', and it shall not be necessary to repeat therein the names or descriptions of the parties to the proceedings in convention."

This sub-rule clarifies the format for presenting a claim in reconvention. It should be within the same document as the plea, provided it is clearly headed "Claim in Reconvention." Importantly, this provision concerns how the counterclaim is laid out, not when or how it is procedurally filed, and it does not override Rule 38(1).

The respondent's counterclaim is not properly before the court because it was filed as a separate document from the plea, without the applicant's or the court's permission. The respondent argues that both documents were filed within 3 seconds of each other, but that doesn't fix the problem. The rule is not just about timing; it's about how the documents are filed together. If we accept the respondent's argument, it would make Rule 38(1) meaningless. Because of this, the court finds that the counterclaim was not filed properly, and the application is granted.

Costs

The applicant prayed for costs on a legal practitioner and client scale. The respondent also prayed that the application be dismissed with costs at the legal practitioner and client scale. The general rule is that costs follow the event; in other words, the successful party is usually awarded costs. The rationale for this principle is that the successful litigant is indemnified from expenses which he/she incurred by reason of being unjustifiably compelled to either initiate or defend litigation. It is trite that this rule should only be departed from when good grounds are shown to exist.

In order for a litigant to successfully claim costs on the attorney and client scale, which is punitive, he/she must show that the other party's behaviour and attitude deserved to be punished. Courts will not resort to this drastic remedy lightly because a person has a right to obtain a favourable decision on a legitimate complaint. A.C. Cilliers in the *Law of Costs* 2nd ed p66, classified the grounds upon which the court would be justified in awarding the cost as between attorney and client: vexatious and frivolous proceedings, dishonesty or fraud of the litigant, reckless or malicious proceedings, litigant's deplorable attitude towards the court and other circumstances. In awarding costs at a higher scale, the courts should exercise greater vigilance. See also *Nel* v *Waterberg Landbouwers Ko-Operative Vereeninging* 1946 AD 597.

I do not think this is a case in which costs on a higher scale should be granted against either party. In *casu*, the applicant gave the respondent four (4) days to respond to the application rather than the mandatory ten (10) days. On the other hand, the respondent has still not served its plea and claim in reconvention against the applicant. Both parties share the blame. It will be fair and just for each party to bear their costs.

Disposition

The respondent's counterclaim is not properly before the court. Rule 38(1) of the High Court Rules, 2021 requires that a claim in reconvention be delivered together with the plea, unless the plaintiff consents or the court grants leave for separate filing. In this case, the respondent filed the counterclaim as a separate pleading without attaching it to the plea or seeking the necessary consent or leave. While Rule 38(2) allows the counterclaim to be set out in a separate document, it must still form part of the same procedural delivery as the plea, not as an independent filing. The respondent's reliance on the timing of electronic submission does not cure the procedural defect, as the rule governs both timing and form. The counterclaim was therefore filed in breach of Rule 38(1), and the application is granted.

Accordingly, the following order is made:

1. The respondent's claim in reconvention, which was filed under case number HCH4190/25, be and is hereby set aside and struck off the record.
2. Each party to bear its own costs.

MANDAZA J …….

M.D. Muchada Legal Practice, Applicant's legal practitioners
Rufu-Makoni Legal Practitioners, Respondent's legal practitioners